

IV. Of the *control of the Court* over the exercise of powers.

1. **Control of the Court over arbitrary powers.**—Where a power is given to trustees to do, or not do, a particular thing at their discretion, the Court has no jurisdiction to lay a command or prohibition upon the trustees as to the exercise of that power, provided their conduct be *bonâ fide*, and their determination is not influenced by improper motives (*b*).

Pink v. De Thuisey.—Thus, in *Pink v. De Thuisey* (*c*), a testatrix gave 1000*l.* to A. upon a condition precedent, but left “her executor *at liberty* to give the said sum if he found the thing proper” though the condition should not have been performed. A. died without having fulfilled the condition or received the money, and his personal representative filed a bill against the executor of the testatrix to compel payment of the legacy. A. in his lifetime had applied for the money, but the executor had not thought right to comply with the request. Sir T. Plumer, in dismissing the bill, observed, “The executor says *he did not think proper to advance the legacy*: is the Court to decide upon the propriety of the executor’s withholding the legacy? That would be assuming an authority confided by the will to the discretion of the executor: it would be to *make a will* for the testatrix, instead of *expounding it*.”

2. **Power with a duty.**—But where the power is *accompanied with a duty* and meant to be exercised (as a power of leasing), the Court will compel the execution or execute it

(*b*) *Thomas v. Dering*, 1 Keen, 729; *Re Eddowes*, 1 Dr. & Sm. 395; *Talbot v. Marshfield*, 2 Dr. & Sm. 285; *French v. Davidson*, 3 Mad. 396; *Sillibourne v. Newport*, 1 K. & J. 602; *Walker v. Walker*, 5 Mad. 424; *Banks v. Le Despencer*, 11 Sim. 527, *per* Sir L. Shadwell; *Attorney-General v. Governors of Harrow School*, 2 Ves. 551; *Cowley v. Hartstonge*, 1 Dow, 378, *per* Lord Eldon; *Potter v. Chapman*, Amb. 99, *per* Lord Hardwicke; *Carr v. Bedford*, 2 Ch. Rep. 146; *Wain v. Earl of Egmont*, 3 M. & K.

445; *Livesey v. Harding*, Taml. 460; *Collins v. Vining*, C. P. Coop. Rep. 1837–38, 472; *Kekewich v. Marker*, 3 Mac. & G. 326, *per* Lord Truro; *Re Coe’s Trust*, 4 K. & J. 199; *Brophy v. Bellamy*, 8 L. R. Ch. App. 798; [*Gisborne v. Gisborne*, 2 App. Cas. 300; *Tabor v. Brooks*, 10 Ch. D. 273; *Marquis Camden v. Murray*, 16 Ch. D. 161; *Tempest v. Lord Camoys*, 21 Ch. D. 571; *Thomas v. Williams*, 24 Ch. D. 558.]

(*c*) 2 Mad. 157.